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CC:MV/LE

October 2, 2026

LA PUBLIC SERVICE COMM
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***Via Fax 225-342-0877 & UPS Delivery***
Ms. Krys Abel
Business Technology Supervisor
Records and Recording Division
Louisiana Public Service Commission
Galvez Building, 12th Floor
602 North Fifth Street
Baton Rouge, Louisiana 70802

**Re: Application for Certification of Generation and Transmission Resources and for Other (LPSC Docket No. U-37882)**

Dear Ms. Abel:

I have enclosed, on behalf of Entergy Louisiana, LLC ("ELL" or the "Company") and all other parties, the original and three copies of the Amended Joint Pre-Hearing Statement. Please file this Statement into the record in accordance with the fax filing procedures of the Louisiana Public Service Commission. A check for $25.00 is enclosed to cover the fax filing fee. Please retain the original and two copies for your files and return a date-stamped copy to me in the enclosed, self-addressed envelope.

Thank you for your assistance with this request. If you have any questions, please feel free to call me.

Sincerely,

D. Skylar Rosenbloom

DSR/jlc
Enclosure

cc: Official Service List U-37882 (*via electronic mail*)

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**BEFORE THE**

**LOUISIANA PUBLIC SERVICE COMMISSION**

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|---|---|---|
| **APPLICATION FOR APPROVAL OF GENERATION AND TRANSMISSION RESOURCES AND FOR OTHER RELIEF** | ) ) ) | **DOCKET NO. U-37882** |

**AMENDED JOINT PRE-HEARING STATEMENT**

**NOW BEFORE THE COMMISSION**, through undersigned counsel, come Applicant Entergy Louisiana, LLC ("ELL" or the "Company"), Louisiana Public Service Commission Staff ("Staff"), the Alliance for Affordable Energy ("AAE"), Union of Concerned Scientists ("UCS"), Sierra Club, 1803 Electric Cooperative, Inc. ("1803"), Walmart Inc. ("Walmart"), Louisiana Energy Users Group ("LEUG"), Southern Renewable Energy Association ("SREA"), Association of Louisiana Electrical Cooperatives ("ALEC"), Gulf States Renewable Energy Industry Association ("GSREIA") (collectively, "Intervenors") (ELL, Staff, and the Intervenors are collectively, "Parties") who together file[1] this Amended Joint Pre-Hearing Statement to reflect the Parties' efforts to further streamline these proceedings as follows:

## I. Witnesses

### a. Agreed Upon Proposed Order of Witnesses

i. Phillip May (ELL)
ii. Elizabeth Ingram (ELL)(To be completed prior to October 9)
iii. Laura Beauchamp (ELL)
iv. Ryan Jones (ELL)
v. Samrat Datta (ELL)
vi. Daniel Kline (ELL)
vii. Thomas Kidd (ELL)
viii. Kenroy Hinkson (ELL)
ix. Nicholas Owens (ELL)
x. Edward Burgess (AAE and UCS) (to be taken no later than 2:00 p.m. on October 9, 2026)[2]

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[1] 1803, ALEC, and GSREIA were provided the opportunity to participate in the crafting of this Joint Pre-Hearing Statement. However, they failed to provide signature blocks in time to join in this filing.

[2] Due to Mr. Burgess' conflicts, he is not available to appear at the hearing on October 12-16, 2026. To the extent that his examination is not completed on October 9, and to the extent that there are issues raised in the balance of the hearing that trigger further questions for Mr. Burgess, the parties agree that he will be subject to recall on October 19-20, 2026 as necessary.

xi. Jeremy Halland (ELL) (Not available until October 13, 2026)
xii. Devi Glick (Sierra Club)
xiii. Nicholas Miller (AAE and UCS)
xiv. Jason Hoyle (SREA)
xv. Lane Sisung (Staff)

Any party that elects to not cross-examine a witness specifically reserves its right to conduct cross-examination of a witness following cross-examination by another party.

b. **Submission of Pre-Filed Testimony without Appearance or Cross-Examination** The Parties request that the Presiding Judge accept the pre-filed testimony of the following witnesses into evidence without the need for the witnesses to appear in person at the hearing:

i. Troy Heytens (ELL)
ii. Ryan Dumas (ELL)
iii. Norman Grunden (ELL)
iv. Michael Goin (ELL)
v. Robert Fluth (ELL)
vi. James Dauphinais (LEUG)
vii. Michael Marchand (Walmart)
viii. John Chapman (Staff)

## II. List of Uncontested Issues Agreed Upon by the Parties

a. ELL has complied with the requirements of the Industrial Load Rule included as Rule 3 in General Order No. R-34860 dated July 29, 2019.

b. In the event the seven new combined cycle combustion turbine ("CCCT") generators described in the Company's Application, testimony, and exhibits (the "Proposed Generators") and the three separate battery energy storage systems described in the Company's Application, testimony, and exhibits (the "Battery Storage Facilities") are found to be in the public interest, the Company shall provide quarterly updates to Commission Staff and Intervenors in this proceeding on the status of the construction of the Proposed Generators, including the schedule, costs, and other critical associated activities through a Construction Monitoring Report, pursuant to a Monitoring Plan that will be offered into evidence as a hearing exhibit.

c. In the event the Proposed Generators and Battery Storage Facilities are approved, the retail revenue requirement associated with the Proposed Generators and the Battery

Storage Facilities (to be determined at the time each is proposed to be included in rates and subject to change in a prudence review of their actual costs) is deemed eligible for recovery in the first billing cycle of the month following commercial operation of each of the Proposed Generators and Battery Storage Facilities through the applicable mechanisms of the Company's then-effective Formula Rate Plan ("FRP"), including more specifically the Additional Capacity Mechanism of the FRP if applicable, and outside of the FRP sharing mechanism and outside of any applicable caps, and subject to offset by deferred revenue from Evest LLC (the "Customer") as described in the Company's Application and Direct Testimony (the "Deferred Customer Revenue"). To the extent the Company does not have an FRP in place at the time the referenced facilities are placed in service authorize (i) a deferral of the non-fuel revenue requirement (*i.e.*, costs that are not eligible to be recovered through the FAC) associated with each of the Proposed Generators and Battery Storage Facilities until such time as the costs of each of the Proposed Generators and Battery Storage Facilities are separately reflected in the Company's retail rates; (ii) a deferral of the costs to hire and train each Proposed Generator's plant staff in advance of each of the respective Proposed Generator's in-service date; and (iii) an accrual of carrying charges on the deferred balances at the Company's weighted average cost of capital, commencing on the dates of commercial operation for each of the Proposed Generators and Battery Storage Facilities and continuing until such time as such costs for each of the Proposed Generators and Battery Storage Facilities are first reflected in the Company's retail rates, subject to offset by the Deferred Customer Revenue. The amortization and cost recovery period of any such deferred balances shall be determined by future Commission action in a separate proceeding.

d. In the event the Proposed Generators and Battery Storage Facilities are approved, The Company is authorized to utilize a depreciable life of twenty (20) years for each of the Proposed Generators to be located in Richland Parish as well as all three Battery Storage Systems.

e. In the event the Proposed Generators and Battery Storage Facilities are approved, the Company is allowed to accrue a return at the Company's weighted average cost of capital, on a net-of-tax basis, on amounts spent for purposes of securing interconnection rights for the Proposed Generators from the date incurred until such time as the costs for the associated generator commence to be recovered in retail rates, and these costs are eligible for recovery in the same manner as the other costs to construct the Proposed Generators.

f. In the event the Proposed Generators are approved, the variable and generation dependent expenses incurred under Long Term Service Agreements are deemed eligible for recovery through the Fuel Adjustment Clause consistent with the LPSC General Order dated November 6, 1997.

g. In the event the Battery Storage Facilities are approved, the cost of the energy to charge the Battery Storage Facilities is deemed eligible for recovery through the FAC.

h. The revenues received from the Customer for the Company's purchases of energy during the Commissioning Period, based on the costs invoiced to the Customer for the applicable cost month, are eligible to be included as a credit in the FAC.

i. The West Fork Creek substation and the nine new auxiliary 230kV switching stations (a portion of the Customer-Funded Interconnection Project)[3] do not require certification pursuant to the General Order R-36199 dated September 10, 2024 (the

[3] The Customer-Funded Interconnection Project consist of the West Fork Creek substation, the nine new auxiliary 230kV switching stations, and the 20-30 miles of 230kV transmission lines to connect the Customer's load to the ELL Transmission System.

"Transmission Siting Order"),[4] as they do not fall within the definition of "Transmission Facilities" and further fall within the exemption in Section VIII(a) and (h) of the Transmission Siting Order.

j. Other components of the Customer-Funded Transmission Interconnection Project (specifically, the 20-30 miles of 230kV transmission lines to connect the Customer's load to the ELL Transmission System) and as to the Smalling to El Dorado 500kV Line, the Commission should find that such projects are exempt from the requirements of the Transmission Siting Order pursuant to the first sentence of Section VIII and the exemption in Section VIII(h) of the Transmission Siting Order, because "the costs of the [referenced facilities], and the cost of any associated System Impacts, will never be reflected or recovered in the retail or wholesale rates to be assessed to customers of Louisiana electric utilities including cooperatives."

k. For the Proposed Transmission Facilities,[5] the generalized siting of the facilities is appropriate, as contemplated by the Transmission Siting Order.

l. In the event that the Proposed Transmission Facilities are approved, the retail revenue requirements associated with the Proposed Transmission Facilities (to be determined at the time each is proposed to be included in rates and subject to change pursuant to a prudence review) are deemed eligible for recovery by the Company (i) through the applicable mechanisms of the FRP, including more specifically the Transmission Recovery Mechanism of the FRP if applicable, and outside of the FRP sharing mechanism and outside of any applicable caps, and subject to offset by Deferred Customer Revenue to the extent the Company remains subject to an FRP at the time

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[4] *See* General Order 09-10-2024 (R-36199) (September 10, 2024), *In re: Review and Possible Modification of the Commission's General Order dated October 10, 2013 Governing Transmission Certification and General Siting*, Docket No. R-36199.

[5] The Proposed Transmission Facilities consist of a new 150 mile 500kV transmission line extending from Richland Parish to St. Landry Parish and a new 500kV switching station in St. Landry Parish, Louisiana.

the referenced facilities are placed in service; or (ii) in the alternative, through the creation and authorization of a regulatory asset commencing on the in-service dates of the Proposed Transmission Facilities and continuing until such time as such costs for the Proposed Transmission Facilities are first reflected in the Company's retail rates, subject to offset by the Deferred Customer Revenue, with interest to be accrued thereon at the Company's after-tax weighted average cost of capital, until such time that the costs can be reflected in rates through a future base rate proceeding. The amortization and cost recovery period of any such deferred balances shall be determined by future Commission action in a separate proceeding.

m. In the event that the Proposed Transmission Facilities are approved, the Company shall provide quarterly updates to Commission Staff and Intervenors in this proceeding on the status of the construction of the Proposed Transmission Facilities, including the schedule, costs, and other critical associated activities through a Construction Monitoring Report, pursuant to the Monitoring Plans which were offered as Exhibit RDJ-6.

n. ELL will install power quality monitoring equipment on the substation serving the Customer's Project and, starting on the last day of the calendar quarter of the one-year anniversary following installation of the power monitoring equipment, will file annual reports in this docket that will disclose any material power quality issues that are observed and any resulting remediation efforts. The Company's obligation to file such annual report shall expire once three (3) consecutive years of full facility operation have occurred with no material power quality issues.

o. ELL's plan to (1) offset the full amount of transmission capital additions for the Customer-Funded Transmission Interconnection Project and the Smalling to El Dorado 500kV Line such that upon completion of each relevant project that the FERC Account

101 Plant in Service balances associated with each project is zero, and (2) account for the other contributions with respect to the amounts received from the Customer through the Contribution in Aid of Construction Agreement, such that the costs for which contributions have been received will not appear in the respective Account 101 Plant in Service balance and not be collected from other customers.

p. ELL's requested accounting treatment of the Customer's other contributions made pursuant to the ESA and/or CIAC Agreement, as well as the receipt of any termination fee as a result of early termination.

q. In the event the Proposed Generators and the Proposed Transmission Facilities are approved, the Company may use Deferral Proposal Framework described in testimony and Exhibit RDJ-4 to establish the Parameters for the in-service rate adjustments for the Proposed Generators and the Proposed Transmission Facilities and the deferral and amortization of Customer revenues into rates.

r. In allocating subscriptions to customers for renewable resources as between and within its Geaux Green and Geaux Zero programs and groups provided therein, ELL shall continue to comply with all applicable LPSC orders including but not limited to existing LPSC Orders U-36697 and U-37425, and any future orders issued in pending docket U-36697.

s. For designating and seeking certification of Designated Renewable Resources for any Geaux Zero Subscription associated with Evest, ELL shall comply with all applicable LPSC orders including but not limited to existing LPSC Order U-36697, and any future orders issued in pending docket U-36697.

## III. List of Contested Issues

**There are no contested issues as between ELL and the LPSC Staff as the two have confected an agreement to resolve all disputed issues between them.**

a. Whether ELL's proposed construction of the Proposed Generators and, to the extent necessary, acquisition and construction of the Battery Storage Facilities serves the public convenience and necessity and is in the public interest, and is therefore prudent, in accordance with the Commission's 1983 General Order.[6]

b. Whether the Proposed Generators and the Battery Storage Facilities are to be treated as system resources for all ELL customers.

c. Whether the Company adequately considered alternative resources to serve the incremental Customer load.

d. Whether the Company has adequately ensured that existing customers will be protected from the costs and risks associated with the Newly Constructed Assets, including adequate protections from increases in fuel costs.

e. What is the appropriate depreciable life for the three Proposed Generators to be located in Pointe Coupee Parish.

f. Whether ELL should be granted an exemption from the Commission's Market-Based Mechanisms General Order[7] for the Proposed Generators based upon its compliance with the Commission's Lightning Initiative and/or for good cause as a result of the specific facts and circumstances presented in this docket.

g. Whether ELL has complied with the Commission's Non-Binding Large Load Guidelines and applicable Executive Order(s) from the Governor of Louisiana, if any.

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[6] The 1983 General Order, as amended by General Order (May 27, 2009), *In re: Possible modifications to the September 20, 1983 General Order to allow (1) for more expeditious certifications of limited-term resource procurements and (2) an exception for annual and seasonal liquidated damages block energy purchases*, Docket No. R-30517.

[7] *See* General Order (February 16, 2004), *In re: Development of Market-Based Mechanisms to Evaluate Proposals to Construct or Acquire Generating Capacity to Meeting Native Load, Supplements the September 20, 1983 General Order*, Docket No. R-26172 Subdocket A,, as amended by General Order, Docket No. R-26172 Subdocket B, dated November 3, 2006 and further amended by the April 26, 2007 General Order and the amendments approved by the Commission at its October 15, 2008 Business and Executive Meeting; the October 29, 2008 General Order No. R-26172, Subdocket C; and the October 14, 2024 General Order No. R-34247.

h. Whether ELL's proposed construction of the Proposed Transmission Facilities is in the public interest and in the interests of affected customers, and therefore prudent, in accordance with the Transmission Siting Order.

i. Whether the West Fork to St. Landry transmission line provides benefits to all ELL customers commensurate with its costs and should be treated as a system resource for all ELL customers.

j. Whether there should be any conditions, reporting requirements, or review placed on the certification of the Proposed Generators and/or the Proposed Transmission Facilities.

k. Whether the Company is adequately planning for the reliability stresses that the Customer's load will place on the distribution and transmission systems.

l. Whether the Company should be required to monitor power quality issues within a 50-mile radius of the Evest project (or some other equally reasonable approach) for a period of at least ten (10) years and to report to the Commission the results of this monitoring, including the impact of power quality issues on customers within the established radius of the Evest project.

m. Whether the Company has established net benefits accruing to all customers and customer classes.

n. Whether the Company's proposed decision process to retain or liquidate new CCCTs and Battery Storage upon early termination should also be required to apply at end of Customer's Electric Service Agreement, with Customer taking the risk that liquidation does not cover remaining book value.

o. Whether the Commission should require the Company, and not ratepayers, to take the risk for any implementation and collectability on the Parent Guaranty.

p. Should the Commission acknowledge that ELL may transfer Alternative Energy Credits ("AECs") associated with the proposed 45 MW uprate to the Waterford Unit 3 generation facility and the 125 MW uprate to the Riverbend nuclear generation facility to Customer, and if so, whether the Commission should require going forward a transparent, non-discriminatory process be developed for allocation of AECs for all ratepayers.

q. Whether the certification should be conditioned on the removal of Section B.6 of the Sustainability Agreement if it is found that it reduces customer choice and market competition.[8]

## IV. Logistical Issues

1. The parties currently estimate the hearing will take approximately four days, however out of an abundance of caution, the parties would like to retain nine of the ten hearing days, with Monday October 12, 2026, no longer being required. The hearing will begin on the initially scheduled date of **October 7, 2026** at **10:00 am**. For each subsequent day all parties and their witnesses will be prepared to begin at 8:30 a.m. However, the parties continue to discuss potential opportunities to streamline the proceedings.

2. ELL witnesses identified in the Agreed Upon Proposed Order of Witnesses, with the exception of Mr. Halland, will appear on October 7-9, 2026. It is the parties intent for Mr. Burgess to appear as contemplated by the Agreed Upon Proposed Order of Witnesses, however he may be taken out of order to begin his testimony no later than 2:00 p.m. on October 9, 2026 if necessary. The hearing will resume on October 13, 2026, with any remaining ELL witnesses appearing first, followed by the remaining intervenor witnesses and then Mr. Sisung.

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[8] ELL's position is that this issue is not properly before the Commission as it is an issue regarding a particular provision of the Sustainability Agreement for which ELL did not seek approval in this case.

3. The Parties have agreed that they do not need to provide to any other party copies of any items of pre-filed direct testimony, including exhibits thereto, that may be filed by a Party into evidence at the hearing.
4. The Parties have agreed to waive opening and closing statements at the hearing.
5. The Parties have agreed to present any public testimony first from each witness who may be called to offer public and confidential testimony. The Parties have agreed to present confidential/HSPM testimony second from each witness who may be called to offer confidential/HSPM and confidential/AEO testimony. During the presentation of confidential/HSPM or confidential/AEO evidence, only those persons who have executed Confidentiality Agreements and been authorized to access confidential/HSPM or confidential/AEO information will be allowed to attend. The Parties have agreed to present CEII testimony last. During the presentation of CEII evidence, only those persons who have executed CEII Agreements and been authorized to access CEII information will be allowed to attend.

Respectfully submitted,

By: _____

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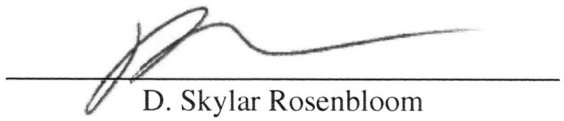
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***Attorneys for Southern Renewable Energy Association***

**CERTIFICATE OF SERVICE**
**LPSC Docket No. U-37882**

I hereby certify that the foregoing pleading was served on all parties of record listed on the Official Service List through electronic delivery.

New Orleans, Louisiana, this 2nd day of October 2026.



D. Skylar Rosenbloom